

	OSC re FTC with CRC 3.110 (b) OSC for FTC with CMC Statement	a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” Section 583.410, subdivision (a), provides: “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant’s Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/7/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted.
10	Santoro v. Thomas 2023-01313129 Motion to Dismiss CMC OSC for FTA OSC re FTC with CRC 3.110 (b)	Defendant Craig Thomas’s Motion to Dismiss is GRANTED. Defendant Craig Thomas, an individual and as Successor In Interest for Chris Santoro and Trustee of Carpe Vitam Trust, moves to dismiss this action pursuant to Code of Civil Procedure sections 581 and 583.410, et seq. Section 581, subdivision (f)(4), provides: “The court may dismiss the complaint as to that defendant when: . . . [¶] (4) After a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.”

	OSC for FTC with CMC Statement	Section 583.410, subdivision (a), provides: "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant's Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/13/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted
11	American Built Science, LLC v. Lunarspace, Inc. 2026-01545490 Motion for Entry of Judgment CMC	Plaintiffs American Built Science, LLC and Theisscare, LLC's Motion for Entry of Default Judgment is CONTINUED to NOVEMBER 9, 2026, AT 1:45 P.M. Plaintiffs are ORDERED to file the mandatory CIV-100 form as required by California Rules of Court rule 3.1800(a) within 10 days of this order.
13	Lenahan v. Volkswagen Group of America, Inc. Motion for Attorney fees	Plaintiff Jaime Lenahan's motion for an award of attorneys' fees, costs and expenses is GRANTED as modified. Entitlement to Attorneys' Fees: Plaintiff moves for attorneys' fees pursuant to Civil Code section 1794, subdivision (d). On March 25, 2026, Plaintiff accepted Defendant Volkswagen Group of America, Inc.'s